

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kelly Lyon	Team: Squad #11	CCRB Case #: 202101162	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Tuesday, 01/26/2021 2:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 7/26/2022	Precinct: 67		
Date/Time CV Reported Sat, 02/06/2021 7:39 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 02/22/2021 11:27 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Enoch Choi	06926	958404	067 PCT
2. POM Matthew Kelly	09342	960754	067 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Jonathan Sorocki	20764	963287	067 PCT
2. POM Damanpreet Singh	11797	968811	067 PCT
3. SGT Timothy Frohberg	4329	952753	067 PCT
4. POM Vito Polisenio	18478	951070	067 PCT
5. POM Ethan Chan	04717	956512	067 PCT
6. POM Robert Felts	15294	945712	067 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Enoch Choi	Abuse: Police Officer Enoch Choi frisked § 87(2)(b)	A . Substantiated
B . POM Matthew Kelly	Abuse: Police Officer Matthew Kelly frisked § 87(2)(b)	B . Substantiated
C . POM Matthew Kelly	Abuse: Police Officer Matthew Kelly searched § 87(2)(b)	C . Substantiated
D . POM Matthew Kelly	Abuse: Police Officer Matthew Kelly made sexually suggestive remarks to § 87(2)(b)	D . Substantiated
E . POM Enoch Choi	Abuse: Police Officer Enoch Choi made sexually suggestive remarks to § 87(2)(b)	E . Substantiated

Case Summary

On February 6, 2021, § 87(2)(b) filed this complaint with IAB by phone. It was received at the CCRB on February 22, 2021.

On January 26, 2021, at approximately 2:00 a.m., § 87(2)(b) was in the lobby of his building, located at § 87(2)(b) in Brooklyn. § 87(2)(b) daughter, § 87(2)(b) called 911 and reported that § 87(2)(b) was having a “mental episode.” PO Robert Felts and PO Enoch Choi of the 67th Precinct arrived at the location. An unidentified resident of the building let PO Felts and PO Choi inside the lobby and § 87(2)(b) ran toward the elevator. PO Felts and PO Choi grabbed § 87(2)(b) by the arms, escorted him out of the elevator, and handcuffed him. PO Matthew Kelly, PO Ethan Chan, PO Damanpreet Singh, and PO Jonathan Sorocki of the 67th Precinct arrived on scene immediately after. PO Kelly approached PO Choi and § 87(2)(b) and assisted by holding § 87(2)(b) arm while PO Felts went to talk to the individuals in the lobby. PO Choi and PO Kelly frisked the outside of § 87(2)(b) shorts pockets, and PO Kelly placed his hand inside of § 87(2)(b) shorts pocket, took out an unidentified object, and returned it to § 87(2)(b) shorts pocket (**Allegations A, B, and C: Abuse of Authority, substantiated**).

§ 87(2)(b) came downstairs, and PO Felts spoke to her, explained that an ambulance was on the way, and asked her to provide § 87(2)(b) ID and a list of medications he was taking so that he could give them to EMS when they arrived. § 87(2)(b) went back upstairs and Sgt. Timothy Frohberg, PO Vito Polisenio of the 67th Precinct, and EMS arrived. PO Felts provided EMS with § 87(2)(b) ID and medication list and EMS stated they could take him to § 87(2)(b) Hospital.

PO Kelly and PO Choi escorted § 87(2)(b) to the ambulance. During the ambulance ride, § 87(2)(b) asked PO Kelly and PO Choi whether a man or woman should be on top during sexual intercourse. PO Kelly and PO Choi conversed with § 87(2)(b) upon the topic and made sexually suggestive remarks (**Allegations D and E: Abuse of Authority, substantiated**).

This incident resulted in no summonses or arrests.

The investigation obtained eight body-worn camera videos (**BR 01, BR 02, BR 03, BR 04, BR 05, BR 06, BR 07, and BR 08; videos, BR 09, BR 10, BR 11, and BR 12; summaries**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Enoch Choi frisked § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Matthew Kelly frisked § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Matthew Kelly searched § 87(2)(b)

It was undisputed that § 87(2)(b) was in the lobby of the building when PO Felts and PO Choi arrived on scene. The officers responded to a radio run (**BR 13; audio, BR 14; summary**) in which officers were informed that there was an emotionally disturbed person at a sensitive location. The radio dispatcher stated that the female caller stated her father was having an episode, was bipolar, non-violent, had no weapons, and there were no injuries. The radio dispatcher stated that there was a domestic violence history and instructed officers to isolate and contain. A physical description of § 87(2)(b) was provided: he was a Black male, 175 pounds, and 70 years old.

§ 87(2)(b) stated (**BR 15 and BR 16**) he could not sleep so he went to his lobby to walk around and exercise. § 87(2)(b) wife and daughter, § 87(2)(b) and § 87(2)(b) wanted him to go back to the apartment. § 87(2)(b) believed that they may have called 911 on him. § 87(2)(b) believed that his wife told the police that he was “mentally sick.”

While § 87(2)(b) was walking around, two officers, PO Felts and PO Choi, arrived and another resident let them inside the building. § 87(2)(b) did not know the names of any of the four residents that were in the lobby at this time. § 87(2)(b) was not being loud, talking, or doing anything aside from walking in the lobby. § 87(2)(b) saw the officers and headed for the elevator. The officers tried to speak to him, but he could not describe what they said. § 87(2)(b) went inside the elevator and PO Felts rushed toward him, grabbed his hand, and jerked his arm behind his back, causing pain to his arm.

PO Felts handcuffed § 87(2)(b) and brought him out of the elevator into the lobby. More officers entered the lobby. No one explained to § 87(2)(b) why he was handcuffed. An officer asked § 87(2)(b) for an ID and entered § 87(2)(b) pocket to see whether he had ID on him. The officers spoke to § 87(2)(b) but were mostly concerned with obtaining his ID. PO Felts then went upstairs to obtain § 87(2)(b) ID from his wife or daughter.

§ 87(2)(b) stated (BR 17) that she was sleeping when the police arrived in the lobby of her building. An officer came upstairs to the apartment and § 87(2)(b) went to the door. § 87(2)(b) told § 87(2)(b) that the officer wanted § 87(2)(b) ID, and she told her mother to go back to bed. § 87(2)(b) later learned from a neighbor that § 87(2)(b) was brought to a hospital. § 87(2)(b) did not know who called 911 and stated that it was possible that a neighbor or someone downstairs had called 911.

§ 87(2)(b) did not cooperate with providing a statement to the CCRB, however, in her 911 call (BR 18; audio, BR 19; summary), § 87(2)(b) stated that her father was having a "mental episode." She stated that her father was in the lobby of the building, had bipolar disorder, was non-violent, and did not have any weapons. She provided a physical description of her father and was connected to EMS. § 87(2)(b) confirmed with EMS that the ambulance was for her father and that it was a behavioral emergency. She also stated her father had not done anything to harm himself or anyone else.

PO Felts (BR 20) and PO Choi responded to a radio run for an emotionally disturbed person who was acting erratically. It was PO Felts understanding that EMS was called at the same time because it was an emotionally disturbed person assignment. As PO Felts approached the building, he could see § 87(2)(b) screaming, yelling, waving his arms, and pacing back and forth in the lobby. PO Felts reached the vestibule and § 87(2)(b) looked at him and continued screaming, yelling, and acting erratically. PO Felts did not know or understand what § 87(2)(b) was screaming and yelling.

A female came to the door, opened it, and stated § 87(2)(b) was acting erratic and asked PO Felts to go get § 87(2)(b). PO Felts believed § 87(2)(b) was a threat to himself due to his screaming, yelling, and erratic behavior and he believed the people in the lobby perceived § 87(2)(b) as a threat because the female asked PO Felts to go get § 87(2)(b). PO Felts could not tell whether § 87(2)(b) was under the influence of anything, and he did not smell like alcohol and was not stumbling or falling.

§ 87(2)(b) went to the elevator to leave the area. PO Felts grabbed § 87(2)(b) by the bicep, escorted him out of the elevator, and placed his arm behind his back. § 87(2)(b) was compliant with exiting the elevator. PO Felts never twisted § 87(2)(b) wrist and he never heard § 87(2)(b) make any complaints of pain. PO Choi grabbed § 87(2)(b) other arm and placed it behind his back as well and never twisted § 87(2)(b) wrist. PO Felts and PO Choi placed handcuffs on § 87(2)(b).

PO Felts asked PO Choi if he was good and walked over to the female in the lobby who stated that she called her neighbor, identified by the investigation as § 87(2)(b) to let her know that her father was in the lobby. PO Felts did not see PO Choi or PO Kelly frisk § 87(2)(b) shorts' pocket and he did not see PO Kelly enter § 87(2)(b) pocket; however, he was talking to the female in the lobby at this time.

§ 87(2)(b) had called 911. § 87(2)(b) came downstairs, and PO Felts spoke to her. PO Felts asked what medication § 87(2)(b) was on and § 87(2)(b) stated he was on multiple but did not know which ones. PO Felts informed § 87(2)(b) that EMS would need § 87(2)(b) medication list and his ID.

§ 87(2)(b) went upstairs. EMS arrived within three to four minutes. Another unit, PO Kelly and PO Chan, and the patrol supervisor, Sgt. Frohberg, arrived within five to six minutes. Sgt. Frohberg never gave PO Felts any instructions. PO Felts spoke to EMS briefly then went upstairs. § 87(2)(b) gave PO Felts a list of the medication that § 87(2)(b) was taking. § 87(2)(b) wife, identified by the investigation as § 87(2)(b) gave PO Felts § 87(2)(b).

ID. PO Felts went downstairs and gave the medication list and ID to EMS. EMS stated they would take § 87(2)(b) to § 87(2)(b) Hospital.

PO Felts explained that when there is an emotionally disturbed person assignment that involves prior emotionally disturbed person history and medication then EMS always takes the emotionally disturbed person to the hospital. PO Felts did not have any conversation with EMS about § 87(2)(b) going to the hospital. PO Felts did not make the decision to send § 87(2)(b) to the hospital. PO Felts did not discuss § 87(2)(b) going to the hospital with PO Choi.

PO Choi (BR 21) provided a statement consistent with that of PO Felts with the following exceptions. PO Choi and PO Felts approached the front lobby doors which were see-through. PO Choi saw § 87(2)(b) walking in the lobby holding a beer can. § 87(2)(b) pointed at the officers and yelled. PO Choi could not understand what he was yelling. § 87(2)(b) approached the door and continued to yell and scream. Within ten seconds, an unidentified female in the lobby walked over and opened the lobby door. PO Choi did not know whether the female had called 911 but she did later confirm with PO Felts that § 87(2)(b) was acting erratic while she was in the lobby with him.

§ 87(2)(b) noticed that the female was opening the door to let the officers inside and ran toward the elevator which was 40 to 50 feet away from the lobby door. The female screamed "Get him, get him." PO Choi and PO Felts went after § 87(2)(b) and stopped him from entering the elevator. § 87(2)(b) was halfway in the elevator door when PO Choi grabbed § 87(2)(b) left elbow/forearm and PO Felts grabbed the other elbow/forearm and pulled him out. § 87(2)(b) was not yanked out for the elevator door. § 87(2)(b) running to the elevator when the officers were let inside indicated to PO Choi that they needed to isolate and contain § 87(2)(b) which was protocol for NYPD when interacting with emotionally disturbed persons.

PO Choi touched § 87(2)(b) wrist to secure his arm and handcuffed § 87(2)(b) for his safety and theirs. PO Choi took the beer can out of his hand because he was clutching it very hard, and PO Choi did not want him to cut himself or use it as a weapon. The beer can was open and partially drank. § 87(2)(b) continued to yell and rock his upper body forward. § 87(2)(b) seemed intoxicated because he was yelling, his speech was slurred, and he was rocking back and forth. There was nothing about § 87(2)(b) appearance that indicated he had any pre-existing medical conditions. § 87(2)(b) age, which PO Choi later learned was 72 years old, did not contribute to the manner in which PO Choi interacted with § 87(2)(b).

PO Choi frisked § 87(2)(b) left pocket to make sure there was nothing sharp inside. PO Choi did not see whether any other officer frisked § 87(2)(b) and did not see PO Kelly place his hand into § 87(2)(b) pocket.

Within seconds, additional officers arrived on scene including PO Kelly, PO Chan, and PO Singh. PO Felts went to interview the people in the lobby and a family member of § 87(2)(b). EMS arrived soon after. PO Choi stated that typically for an emotionally disturbed person incident, EMS is automatically routed to the location. EMS spoke with PO Felts. No one discussed sending § 87(2)(b) to the hospital with PO Choi. PO Felts was the one who asked questions and investigated § 87(2)(b) medical history.

PO Choi's supervisor, Sgt. Frohberg, and his operator arrived five to ten minutes later. PO Choi did not recall hearing PO Felts talk to Sgt. Frohberg about sending § 87(2)(b) to the hospital. EMS deemed that § 87(2)(b) required medical attention. PO Choi did not make the decision to send § 87(2)(b) to the hospital.

PO Kelly (BR 22) and PO Chan responded to a radio run for an emotionally disturbed person. § 87(2)(b) was already handcuffed and either PO Felts or PO Choi was holding on to § 87(2)(b). § 87(2)(b) was yelling and was erratic. § 87(2)(b) was incoherent in what he was talking about and would not answer questions, or his answers would not make sense. PO Kelly did not recall what § 87(2)(b) was yelling and he was yelling at no one in particular. PO Kelly did not recall whether he deemed § 87(2)(b) intoxicated.

PO Kelly had dealt with § 87(2)(b) in the past and it was his understanding that § 87(2)(b)

§ 87(2)(b) had an altered mental state. PO Kelly stated his prior contact with § 87(2)(b) was frequent enough that when § 87(2)(b) address came over, he knew that the call was regarding § 87(2)(b) as 911 had been called on him before. Previous encounters with § 87(2)(b) varied as there were occasions in which he was more cooperative and occasions he was less cooperative.

PO Kelly and the other officers waited for ambulance to arrive. PO Kelly did not remember whether EMS came inside the building when they arrived. PO Kelly was holding § 87(2)(b) arm. PO Kelly frisked § 87(2)(b) pocket for the safety of himself, his partner, and EMS because § 87(2)(b) was in an altered metal state and could have become violent. PO Kelly did not recall PO Choi frisking § 87(2)(b) pocket. PO Kelly did not recall entering § 87(2)(b) pocket or feeling anything in his pocket. PO Kelly stated there was not necessarily anything about § 87(2)(b) behavior that made him seem like he could become violent at that moment, however, when dealing with emotionally disturbed person s officers never know if someone is going to be violent or when they could become violent.

During PO Kelly's interview, PO Singh's body-worn camera (BR 06; video, BR 12; summary) was played from the beginning until 00:23 seconds. During the clip, PO Kelly takes an object outside of § 87(2)(b) pocket. PO Kelly could not identify the object he took out of § 87(2)(b) pocket. PO Kelly stated that he deemed the object to be a bulge and took it out for the safety of himself and EMS to determine what it was. Once it was deemed not a weapon, PO Kelly placed it back in his pocket.

According to the Event Information for #§ 87(2)(b) (BR 23), EMS was dispatched immediately after § 87(2)(b) called 911.

PO Felts's body-worn camera footage (BR 02; video, BR 11, summary) shows at 1:33 minutes, PO Felts enters the vestibule to § 87(2)(b) building. § 87(2)(b) yells something inaudible at PO Felts through the door and walks away. A female lets PO Felts into the building and says, "Thank you guys." § 87(2)(b) tries to enter the elevator and PO Felts grabs him by the arm and pulls him out of the elevator. He and PO Choi handcuff § 87(2)(b) PO Felts goes to speak with the female who opened the door. She explains that § 87(2)(b) is her neighbor, and she believes that § 87(2)(b) wife called the police. PO Felts then walks to the other side of the lobby and speaks to § 87(2)(b) daughter, § 87(2)(b). She explains that § 87(2)(b) is not taking his medication and PO Felts tells her an ambulance is on the way. § 87(2)(b) agrees to bring down § 87(2)(b) ID and a list of the medications he is on.

At 4:50 minutes, EMS arrives. PO Felts tells them that § 87(2)(b) daughter is bringing down his ID and medication list. PO Felts also tells EMS that his daughter stated he had been ranting and raving all night. Throughout the duration of the video, § 87(2)(b) is yelling and is at times incoherent. At 8:50 minutes, PO Felts hands § 87(2)(b) ID and the list of medication to an EMT and the EMT says, "I'm guessing she wants him to go?" and PO Felts says, "Yeah." EMS says they can take him to § 87(2)(b) Hospital. PO Choi and PO Kelly then escort § 87(2)(b) out of the lobby. § 87(2)(b) comes downstairs, and PO Felts tells her they are taking him to § 87(2)(b) Hospital.

Because § 87(2)(b) requested police and an ambulance for her father and PO Felts and PO Choi were instructed over the radio to isolate and contain § 87(2)(b) it was appropriate for PO Felts and PO Choi to immediately grab § 87(2)(b) and handcuff him when he was attempting to evade the officers by going into the elevator, and to secure him until EMS arrived. Furthermore, because § 87(2)(b) was behaving erratically, not taking his medication, and was brought to the hospital at the request of his family member, it was permissible for PO Felts and PO Choi to assist EMS in removing § 87(2)(b) to the hospital.

NYPD Patrol Guide procedure 221-13 (BR 24), states restraining equipment including handcuffs may be used if an emotionally disturbed person being taken into custody is resisting. When an emotionally disturbed person has been restrained, officers are to remove property that is dangerous to life or will facilitate escape.

In People v. De Bour, 40 N.Y.2d 210 (BR 30) the court found that officers have the

authority to frisk if they reasonably suspect that they are in danger of physical injury by virtue of a detainee being armed.

In People v. Sanchez, 38 N.Y.2d 72 (1975) (**BR 31**) the court found that a search was not permissible where the search was not based on any reasonable suspicion articulated by the police officer that he was in fear of physical danger upon feeling a “hard object,” the police possessed no information linking the defendant to possession of a weapon, and no exigent circumstances were present to justify the immediate intrusion into the defendant’s pockets.

§ 87(2)(g)
It is therefore recommended that **Allegations A and B** be *substantiated*.

§ 87(2)(g)
It is therefore recommended that **Allegation C** be *substantiated*.

Allegation (D) Abuse of Authority: Police Officer Matthew Kelly made sexually suggestive remarks to § 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer Enoch Choi made sexually suggestive remarks to § 87(2)(b)

It was undisputed that PO Kelly and PO Choi accompanied § 87(2)(b) to § 87(2)(b) Hospital in the ambulance. Although § 87(2)(b) never alleged the following conversation, sexually suggestive remarks made by PO Kelly and PO Choi were captured on body-worn camera footage.

PO Kelly’s body-worn camera footage (**BR 04; video, BR 12, summary**) shows at 20:00 minutes, PO Kelly asks § 87(2)(b) if he would like to switch seats. § 87(2)(b) says something about handcuffs and PO Kelly says, “You want to put me in handcuffs?” § 87(2)(b) says, “Yeah and PO Kelly says, “I don’t know you like that.” § 87(2)(b) then says, “I want to know who would be on top and who would be on bottom [...] between man and woman.” PO Choi says, “Who likes to be on top?” § 87(2)(b) says, “Yeah when you’re having sex.” PO Choi says, “I don’t know, you tell me.” § 87(2)(b) asks again, and PO Choi says, “How many people are we talking about?” § 87(2)(b) says, “Two, man and woman.” PO Choi says, “What do you like?” § 87(2)(b) says, “Man has to be on top.” PO Kelly says, “Man has to be on top?” and § 87(2)(b) says, “Yeah.” PO Choi says, “You don’t like the bottom?” and § 87(2)(b) says, “Nah.” PO Choi says, “You like to do all the work” and § 87(2)(b) says, “I have to do the work.” PO Choi says, “My man, how old are you?” § 87(2)(b) says, “I’m 73.” PO Kelly says, “Good for you,” and PO Choi says, “Then you should be on the bottom, let the girl do all the work.” PO Kelly says, “You put in enough work.” Then the ambulance arrives at the hospital.

PO Kelly stated (**BR 22**) that he said, “I don’t know you like that,” to make a joke when § 87(2)(b) stated he wanted to put PO Kelly in handcuffs. PO Kelly stated that he engaged in the conversation because when dealing with someone in an altered mental state and possibly emotionally disturbed person, in PO Kelly’s experience, engaging in conversation keeps the person calm and avoids arguing, fighting, kicking, or causing any kind of injury to themselves, officers, or EMS. PO Kelly stated that if they find something that the person likes to talk about and it keeps them calm, whatever it is, he is more than willing to talk about it if it is going to keep the person calm and no one gets hurt.

PO Choi stated (BR 21) that during the ambulance ride, § 87(2)(b) asked him, PO Kelly, and the ambulance personnel whether they preferred the man or the woman to be on top or bottom during sexual intercourse. PO Choi and PO Kelly engaged in the conversation because their main objective during an ambulance ride is to keep the person calm and collected and engaged in conversation. § 87(2)(b) initiated the question and conversation which kept § 87(2)(b) engaged, opposed to the yelling he was doing previously which the officers could not understand what he was saying.

NYPD Patrol Guide procedure 200-02 (BR 25) states that officers are to maintain a higher standard of integrity than is generally expected of others.

In DAO-DCT Case Number: 2018-18951 (BR 26), the tribunal found that even with good intentions, the officer was responsible to act with decorum in their interactions with the public. Even if there was no indication that the civilian was offended by inappropriate language, under the particular circumstances, the gratuitous use of inappropriate language was unprofessional. There are certain situations where profane remarks made during a stressful or chaotic situation would not constitute misconduct.

§ 87(2)(g)

It is therefore recommended that **Allegations D and E** be *substantiated*.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 27).
- PO Felts has been a member of service for 14 years and named a subject in 16 additional CCRB complaints and 28 allegations, none of which were substantiated.
- PO Choi has been a member of service for six years and named a subject in two additional CCRB complaints and five allegations, none of which were substantiated.
 - § 87(2)(g)
- PO Kelly has been a member of service for six years and named a subject in five additional CCRB complaints and eight allegations, three of which have been substantiated.
 - 201808784 involved a substantiated allegation of a discourteous word. The Board recommended Command Discipline B and the NYPD imposed Instructions.
 - 202008043 involved substantiated allegations of a refusal to provide name and a discourteous word. The Board recommended Command Discipline A and the NYPD has yet to impose discipline.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of April 1, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this incident (BR 28).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 11

Investigator:	<u>Kelly Lyon</u>	<u>Inv. Kelly Lyon</u>	<u>05/24/2022</u>
	Signature	Print Title & Name	Date

Reviewer: _____

Signature _____ Print Title & Name _____ Date _____